

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA.

PRC APPEAL No.75/2025

M/S Khair Kakar & Brothers
Through its Authorized Representative
Rehmatullah S/o Ghulam Muhammad

...Appellant

VERSUS

- 1) Government of Baluchistan, through its Chief Secretary.
- 2) Secretary, CWPP& H Department
- 3) Executive Engineer (B&R), CWPP& H, Killa Saifullah
- 4) Chairman CRC.
- 3) M/s Jaffar and Brothers

...Respondents

APPEAL UNDER RULE 56-A AGAINST THE TSE No 252609840063

Decision Dated: 08-01-2026.

This Appeal received in the office of the Registrar on 29/12/2025 and came before the Chairman of the Procurement Review Committee on the same day with the objections from the office of the Registrar regarding maintainability on the grounds of limitation for filing of the instant Appeal.

The Brief facts of the Appeal are that the Appellant participated in the bid process under TSE No. 252609840063 for "Construction of Road Kachoghi Road Killa Saifullah" and bidding procedure set for the bidding process was Single Stage Two Envelope procedure.

The Appellant is of the view that he participated in the bidding process alongwith 18 other bidders with the bid opening date of 22/09/25 and Evaluation Reports were uploaded on 24/11/25 on Authority's website wherein the firm of the Appellant was declared non eligible on the alleged biased and untrue reasons

despite of fulfilling all requirements and provision of the documents related to similar nature assignments. The Appellant filed his Grievance Application dated 08/12/25 before the Chairman Complaint Redressal Committee (CRC) under Rule 56 which was decided on 16/12/25 and the Grievance of the Appellant was rejected on the grounds of time limitation. The record reveals that Chairman Complaint Redressal decided the same vide no. G-13(A)/CELZZ/2152-56/E dated 16/12/2025.

Record was perused. It transpired on examining the evaluation report that the firm of the Appellant has been disqualified on grounds of Similar Assignments wherein it is specifically mentioned that ***"One Work Order is repeated twice and other is Routine Maintenance"***.

The Appellant however approached this Committee on 29/12/25 challenging the decision of the Complaint Redressal Committee after a lapse of 13 days. It is important to mention here that the limitation for filing of the Appeal before the (Procurement Review Committee) PRC is 05 days after the decision of CRC or lapse of 18 days of filing of Appeal before the Complaint Redressal Committee (CRC), if the CRC fails to arrive at any decision within the stipulated time. The Rule 56(A), Sub-Rule-1 is reproduced hereunder.

"If the Grievance Redressal Committee fails to arrive at a decision within 18 days, or if the bidder is not satisfied with the decision of the Grievance Redressal Committee, they may lodge an appeal to the Review Committee within five days of the completion of eighteen days or decision of the Grievance Redressal Committee whatever the case may be".

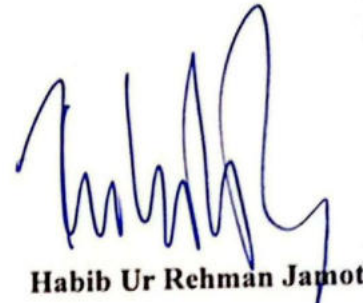
At this stage when a considerable time has elapsed for filing of this Appeal, this Appeal becomes time barred as the time limitation for filling of Appeal before this Committee is 05 Days as per Rule 56(A), Sub Rule -1.

Furthermore, the Appellant failed to file Application under Section 5 of the Limitation Act for condonation of delay. Therefore, the Appeal of the Appellant without filling of Application for condonation of delay and showing any plausible explanation for such a delay cannot be entertained and bears no fruit.

On these grounds this Appeal is time-barred and not maintainable, is hereby dismissed.

Announced on this day of 8th January, 2026 under the seal and Authority of the Chairman, Procurement Review Committee, Balochistan Public Procurement Regulatory Authority.

The Registrar of this Committee is directed to communicate a copy of this decision to the Appellant and all Respondents.



Habib Ur Rehman Jamot

08/01/2026

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)